To support the state's extraordinary allegation that we intended to replace the existing government with a Soviet-style state, the Crown relied on the evidence of Professor Andrew Murray, head of the Department of Political Science at the University of Cape Town. Murray labeled many of the documents seized from us, including the Freedom Charter itself, as communistic.

Professor Murray seemed, at the outset, relatively knowledgeable, but that was until Berrangé began his cross-examination. Berrangé said that he wanted to read Murray a number of passages from various documents and then have Murray label them communistic or not. Berrangé read him the first passage, which concerned the need for ordinary workers to cooperate with each other and not exploit one another. Communistic, Murray said. Berrangé then noted that the statement had been made by the former premier of South Africa, Dr. Malan. Berrangé proceeded to read him two other statements, both of which Professor Murray described as communistic. These passages had in fact been uttered by the American presidents Abraham Lincoln and Woodrow Wilson. The highlight came when Berrangé read Murray a passage that the professor unhesitatingly described as "communism straight from the shoulder." Berrangé then revealed that it was a statement that Professor Murray himself had written in the 1930s.

In the seventh month of the trial, the state said it would produce evidence of planned violence that occurred during the Defiance Campaign. The state called the first of their star witnesses, Solomon Ngubase, who offered sensational evidence that seemed to implicate the ANC. Ngubase was a soft-spoken fellow in his late thirties, with a shaky command of English, who was currently serving a sentence for fraud. In his opening testimony, Ngubase told the court he had obtained a bachelor of arts degree from Fort Hare, and that he was a practicing attorney. He said he became secretary of the Port Elizabeth branch of the ANC as well as a member of the National Executive Committee. He claimed to have been present at a meeting of the National Executive when a decision was made to send Walter Sisulu and David Bopape to the Soviet Union to procure arms for a violent revolution in South Africa. He said he was present at a meeting that planned the 1952 Port Elizabeth riot and that he had witnessed an ANC decision to murder all whites in the Transkei in the same manner as the Mau Mau in Kenya.